

		ordered to arbitration.” Adolph v. Uber Technologies, Inc. (2023) 14 Cal. 5th 1104, 1125. In such cases, the representative PAGA claim should be stayed and the individual PAGA claim should be ordered to arbitration. Both the FAA and California law provide for a stay of proceedings pending arbitration. 9 U.S.C. § 3; C.C.P. § 1281.4. Based on all of the above, the court finds the Agreement enforceable, notwithstanding its small amount of procedural unconscionability, and plaintiff is ordered to individually arbitrate his claims, including the individual PAGA claim, against defendant. Additionally, the class claims shall be dismissed without prejudice pursuant to the class action waiver. Finally, <i>the action, including the representative PAGA claim, shall otherwise be stayed pending the outcome of arbitration.</i> Adolph v. Uber Technologies, Inc. (2023) 14 Cal. 5th 1104; 9 U.S.C. § 3. Defendant to give notice.
107	Purcell vs. Potratz 2019-01115653	Motion to Dismiss Defendants’ Motion to Dismiss is DENIED. Contrary to the court’s prior minute order (ROA 1189), the proof of service indicates electronic service on plaintiffs’ deceased counsel, rather than plaintiffs. ROA 1184, 1185. This ruling is therefore without prejudice, assuming defendants can effectuate proper service of the moving papers. Defendants to give notice.
108	David Goldman v. LBG Real Estate Companies, LLC 2025-01498037	Motion to Appoint Receiver [TO BE HEARD 5/15/26 AT 2PM] The Court has reviewed all papers submitted in connection with Plaintiff/Judgment Creditor David Goldman Motion to Appoint Receiver Over Defendant LBG Real Estate Companies, LLC (“LBG REC”), including Interested Third Parties/Objectors Leslie Lundin and Douglas Beiswenger’s objections to Goldman’s submission of evidence implicating their assertion of attorney-client privilege—namely, the amount of attorneys’ fees paid on behalf of Interested Third Parties to their attorneys at Tucker Ellis LLP. The receiver motion was originally set for hearing on 1/8/2026 in Department C23 of this Court but was reset in this department for 1/29/2029. (ROA #32.) After the moving papers and opposition were filed, Goldman filed an ex parte application, seeking an order (1) permitting this Court to consider newly discovered evidence in connection with the receiver motion; (2) continuing the receiver motion and setting a briefing schedule for the parties to address the new evidence; and (3) finding invalid, pursuant to Code of Civil Procedure section 2031.285, the privilege claim of Interested Third Parties. (ROA #92.) At the 1/22/2026 hearing on the ex parte, the Court (1) continued the receiver motion to 5/14/2026; (2) ordered the parties to file supplemental briefing on the receiver motion pursuant to Code; (3) permitted the Interested Third Parties to file a brief to object to the evidence and raise the privilege issue; and (4) stated that at the continued hearing